Responsible Administrator: President
Responsible Office: Human Resources
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Violence in the Workplace Policy

Policy Statement

Southeastern Louisiana University recognizes that its people are its most valuable resource, and their safety and security are essential to ensuring that people have the opportunity to carry out their responsibilities and derive the full benefit of their experience with the University. Each employee, student, and visitor has a reasonable expectation to pursue their respective duties and activities at the University in a safe atmosphere free of threats and assaults, verbal or physical.

Southeastern is committed to providing a violence free campus.

Purpose of Policy

To direct implementation of effective security measures and administrative work practices to minimize exposure to conditions that could result in harm to employees, students, and visitors.

To promote a positive, respectful and safe campus and work environment that fosters the security, safety, and health of employees, students and visitors.

To require ongoing analysis of the workforce and work site including classrooms and other campus venues for hazard prevention and control.

Applicability

This policy applies to all employees, students and visitors of Southeastern Louisiana University with regard to threats or incidents of violence by employees.

Policy and Procedure

Definitions

Assault. Assault is an attempt to commit a battery, or the intentional placing of another in reasonable apprehension of receiving a battery. (Example: I may have a stick raised and know that I have no intention of striking you, but based on the circumstances, you have a reasonable apprehension that I plan to strike you.)

Aggravated Assault. Aggravated assault is an assault committed with a dangerous weapon.

Battery. Battery is the intentional use of force or violence upon another, or the intentional administration of a poison or other noxious liquid or substance to another.

Aggravated Battery. Aggravated battery is a battery committed with a dangerous weapon.

Credible Threat. Credible Threat is a statement or action that would cause a reasonable person to fear for his/her own safety or that of another person, and in fact, cause such fear.

Intentional. Intentional refers to conduct when the circumstances indicate that the offender, in the ordinary course of human experience, must have considered the criminal consequences as reasonably certain to result from his act or failure to act.

Violence. Violence is the commission of an assault or battery or the making of a credible threat.

Workplace. The workplace is any site where any employee is placed for the purpose of completing job assignments or where a student attends classes, obtains assistance, participates in school activities, or studies on the campus.

Violence Prevention. The implementation of effective security measures, work practices, and a work site analysis for hazard prevention and control to promote a positive, respectful, safe work and educational environment and minimize exposure that could result in harm to employees, students, and visitors.

Workplace Violence. The act or threatened act of physical and/or verbal force being used in a harmful or destructive manner in an employment or student related setting.

Management Responsibilities

Southeastern Louisiana University shall comply with federal and state statutes, rules, and, regulations, and/or guidelines in making reasonable efforts to:

- Hire, train, and supervise employees
- Discipline employees who violate this policy
- Intervene in situations of harassment in the workplace where the employer or any person of responsibility is aware of the harassment
- Ensure employees and/or independent contractors are fit for duty and do not pose unnecessary risks to others
- Provide security precautions and other measures to minimize the risk of foreseeable criminal intrusion based upon prior experience or location in a dangerous area
- Maintain an appropriate level of security
- Establish and implement a written policy and plan for addressing violence in the workplace
- Provide employee training on the agency plan, warning signs of potential for violent behavior, and precautions which may enhance the personal safety of employees at work or students while in the campus environment
- Warn an employee or student of a credible threat made by another to do harm to the employee or student

- Support the application of sanctions or disciplinary action and/or prosecution of offenders, as appropriate
- Accommodate, after appropriate evaluation, employees and students who require special assistance following incident(s) of workplace violence
- Cooperate with the University Police Department or any other law enforcement agency in the conduct of an investigation
- Establish a uniform violence reporting system with regular review of submitted reports
- Initiate procedures to protect from retaliation employees or students who report credible threats
- Keep up-to-date records to evaluate the effectiveness of administrative and work practice changes initiated to prevent workplace violence
- Encourage employees and students to report threats, unwelcome comments and/or actions on the part of another person, etc., to the University Police Department

Management Commitment

Southeastern Louisiana University's management commitment, including the endorsement and visible involvement of the top levels of administration, provides the motivation and resources to deal effectively with workplace violence and includes:

- Organizational concern for employee and student emotional and physical safety and health
- Commitment to the safety and security of all persons at the workplace
- Assigned responsibility for the various aspects of the workplace violence prevention program to ensure that all supervisors and employees understand their roles and responsibilities
- Delegation of authority and allocation of resources to all responsible parties
- Accountability for involved supervisors and employees
- Debriefing/counseling for employees and students experiencing or witnessing assaults and other violent incidents
- Support and implementation of appropriate recommendations from the Workplace Violence Committee
- Treatment of workplace violence, incidents, complaints and concerns with seriousness, keeping confidential all reports and the identification of parties, except those who have a legitimate need to know and to the extent required by law

Employee Responsibilities

At Southeastern Louisiana University, employees are required to report to the Human Resources Office or to the University Police Department, as appropriate, all threats or incidents of violent behavior in the workplace which they observe or of which they become aware.

Inappropriate behavior is often a warning sign of potential hostility or violence. Employees, students, and/or visitors who exhibit the following or other aggressive behaviors should be reported and addressed in accordance with the University's policies:

- Unwelcome name-calling, obscene language, and other abusive or belligerent behavior
- Intimidation through direct or veiled threats
- Throwing objects in the workplace regardless of the size or type of object thrown or whether a person is the target of a thrown object

- Physically touching another employee in an intimidating, malicious, or sexually harassing manner, including such acts as hitting, slapping, poking, kicking, pinching, grabbing, and pushing, or any other unwanted and unwelcome physical contact
- Physically intimidating others, including such acts as obscene gestures, "getting in your face," and fist shaking

Employee involvement and feedback enable workers to develop and express their own commitment to safety and security and provide useful information to design, implement, and evaluate the program. At Southeastern Louisiana University, employee involvement includes but is not limited to:

- Understanding and complying with the workplace violence prevention program and other safety and security measures
- Participating in employee complaint or suggestion procedures addressing safety and security concerns
- Providing prompt and accurate reporting of violent or threatening incidents
- Cooperating with the appropriate University staff and/or groups that are tasked to review violent incidents and security problems and makes security inspections
- Participating in professional development addressing techniques to recognize and abate escalating agitation, assault behavior or criminal intent

Workplace Analysis

The process of workplace analysis involves a step-by-step, common-sense look at the workplace to find existing or potential hazards for the occurrence of workplace violence. The workplace analysis entails reviewing specific procedure or operations that contribute to hazards and specific locales where hazards may develop. The workplace analysis program includes, but is not limited to, analyzing and tracking records, monitoring trends, analyzing incidents, analyzing workplace security and receiving input from those who are familiar with workplace sites and procedures. At Southeastern Louisiana University, the responsibility for conducting and maintaining workplace analyses is assigned to the Office of Environmental Health and Safety.

Hazard Prevention and Control

Workplace adaptations, engineering controls, administrative controls, and work practice controls shall be implemented by Southeastern Louisiana University to prevent or control, to the extent possible, any discovered hazards.

Incident Response and Evaluation

Assistance will be provided for victimized individuals who may be affected by workplace violence or by witnessing workplace violence. Whenever an incident occurs, injured employees will have access to medical treatment and/or mental health evaluation as appropriate.

An employee or student who has been threatened or assaulted on campus should immediately report the incident to the University Police Department in accordance with this policy.

A. University Police Department staff will take the following actions in accordance with the severity of the incident, the discretion of the responding officer, and the desires of the victim/reporting subject:
   1. If the situation is determined not to be eminently dangerous:
      a. Separate employees involved and isolate them until they are interviewed and statements are taken from each individual;
      b. Separate any witnesses until they are interviewed and their statements taken; and
      c. Document all actions and statement.

   2. If the situation is determined to be eminently dangerous:
      a. Order all those presenting the danger to immediately leave the facility;
      b. Physically remove the individual(s), if necessary; and
      c. Document all actions and statements.

   3. In all cases, University Police Department staff will enforce applicable laws and statutes, making arrests or taking other actions as necessary while preserving due process and civil rights of potential victims and offenders.

B. As soon as possible after the incident, the University Police Department shall make every reasonable attempt to interview all parties to the incident, including the victim(s), the subject(s), and any witnesses, and prepare a written summary of the interviews. The summary shall be the basis on which to determine the facts of the event.

C. The summary/report will be forwarded to the Director of the University Police Department who will convene the Violence in the Workplace Committee to:
   1. Review the summary of the interviews; and
   2. Make a recommendation for action to the Office of Human Resources and/or Student Advocacy and Accountability Office, as appropriate.

If the members of the Violence in the Workplace Committee so desire, the University Police Department investigator assigned to the incident may be called to answer questions and/or give additional testimony regarding the investigation and summary.

The members of the Violence in the Workplace Committee shall include:

- EEO/ADA Compliance Officer
- Assistant Director of Human Resources
- Director of Environmental Health and Safety
- Director of the University Counseling Center
- Director of University Police
- Faculty and/or Student Representatives, as appropriate

Records

Records associated with violence in the workplace need to be kept in a permanent and secure location, and in a confidential manner. It shall be the responsibility of the Office of Human Resources, the University Police Department, and the Office of Environmental Health and Safety to maintain those records appropriate to their areas, to help evaluate security, methods of hazard control, and identify training needs. The following records

are important and shall be maintained in accordance with pertinent statutes, as part of the violence prevention program at the University:

- Reports of work injury, including workers' compensation injuries, if necessary
- Reports of all assaults, including incidents of abuse, verbal attacks, or aggressive behavior occurring between persons in the workplace
- Police reports of all incidents of assault occurring in the workplace
- Minutes of safety meetings, records of hazards and corrective actions recommended and taken, reports of workplace violence training, qualification of trainers, subjects covered, and all those who were in attendance

[End of Policy]